

whether the order itself should have been more narrowly tailored. On the record before us and without the benefit of the Court of Appeals' assessment, we are unwilling to speculate about these possibilities. We proceed, therefore, to the question whether judicial immunity bars an award of attorney's fees, under § 1988, to one who succeeds in obtaining injunctive relief against a judicial officer.

V

Petitioner insists that judicial immunity bars a fee award because attorney's fees are the functional equivalent of monetary damages and monetary damages indisputably are prohibited by judicial immunity. She reasons that the chilling effect of a damages award is no less chilling when the award is denominated attorney's fees.

There is, perhaps, some logic to petitioner's reasoning.

The weakness in it is that it is for Congress, not this Court, to determine whether and to what extent to abrogate the judiciary's common-law immunity. See *Pierson v. Ray*, 386 U. S., at 554. Congress has made clear in § 1988 its intent that attorney's fees be available in any action to enforce a provision of § 1983. See also *Hutto v. Finney*, 437 U. S. 678, 694 (1978). The legislative history of the statute confirms Congress' intent that an attorney's fee award be available even when damages would be barred or limited by "immunity doctrines and special defenses, available only to public officials." H. R. Rep. No. 94-1558, p. 9 (1976).²³ See also

²³ As further indication of Congress' intent that § 1988 apply to judicial officers, the House Report contains a citation to *Pierson v. Ray*, 386 U. S. 547 (1967). Petitioner suggests that the citation to *Pierson* refers to another aspect of the decision, regarding qualified immunities of officials in the Executive Branch. We see no need to adopt such a strained interpretation. The House Report clearly referred to public officials against whom damages were *precluded*, as well as those against whom damages were limited. Of the three cases cited by the House Report, only *Pierson* involved complete preclusion of a damages award.